

25STCV24127 25STCV24127

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JEANETTE FRANCE V. CITY OF LOS ANGELES

Tuesday,

September 15, 2026

[TENTATIVE]

ORDER GRANTING MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY DEFENDANT, LOS ANGELES DEPARTMENT OF WATER AND POWER (1162)

I.

BACKGROUND

The

lead matter is BC719459 Jeanette France v. Los Angeles Department of Water and Power, which alleged discrimination and related claims in violation of the Fair Employment and Housing Act. The lead matter ended in judgment entered on December 17, 2019 in favor of Defendant after the Court granted Defendant's Motion for Summary Judgment.

In

this action, deemed related to BC719459, the complaint alleges that Plaintiff sustained a work-related injury on January 9, 2017, for which Plaintiff filed a worker's compensation claim. Defendant terminated Plaintiff's employment in retaliation while she was on approved worker's compensation leave. Plaintiff alleges eleven causes of action for violation of the Fair Employment and Housing Act and related employment claims.

On

May 6, 2026, the Court granted Defendant's motion to deem Plaintiff a vexatious litigant and required a prefiling order before Plaintiff could commence new litigation.

II. ARGUMENTS

Defendant

now moves for judgment on the pleadings on all eleven causes of action alleged in Plaintiff's complaint filed August 18, 2025, on grounds the claims were previously litigated in BC719459 and resolved in Defendant's favor, and therefore, res judicata bars the claims. The time for seeking relief from that judgment has long since expired. The FEHA claims are also barred by the three-year statute of limitations under Government Code § 12960.

Defendant

also argues that the non-FEHA claims for defamation and emotional distress are barred because Plaintiff failed to timely present a government claim. Defendant terminated Plaintiff in 2018. Plaintiff is not entitled to punitive damages against a government entity.

Plaintiff

argues in opposition that Defendant did not properly serve Plaintiff with its answer. Plaintiff requests relief from judgment from judgment in the lead matter based on extrinsic fraud as she was deprived of the opportunity to present her case and based on mistake, inadvertence, surprise or excusable neglect. Plaintiff argues the law favors disposition of a case on its merits, and that Plaintiff will suffer great hardship if this motion is granted. The Court also has authority to stay enforcement of judgment.

The

Court has reviewed the motion, opposition, and reply briefs, and all documents in support.

III. LEGAL STANDARDS

The two statutory grounds supporting a motion for judgment on the pleadings are either that the court does not have jurisdiction of the subject of the cause of action or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(B)). A motion for judgment on the pleadings performs the same function as a

general demurrer and attacks only defects disclosed on the face of the pleadings or by matters subject to judicial notice. Respondents. *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1065 (“a motion for judgment on the pleadings, like a demurrer, raises only questions of law”)

For purposes of this motion, all properly alleged material facts are deemed true as well as all facts that may be implied or inferred from those expressly alleged. (*Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452).

II.

DISCUSSION

A. Preliminary matters.

Plaintiff's

contention that she was not properly served with the answer has no bearing on this motion. Defendant timely served Plaintiff with this motion by mailing and emailing the motion on June 10, 2026. Plaintiff timely filed an opposition which the Court has considered.

B. Plaintiff's

request for relief

Plaintiff

requests relief from Defendant's "Motion for Summary Judgment on the Pleadings" and asks that the Court deny the motion based on mistake, inadvertence, surprise or excusable neglect citing Code of Civil Procedure § 473(b). There are no facts to support the request. As noted, the Court has considered the opposition.

The

principle of extrinsic fraud does not apply and cannot defeat a motion for judgment on the pleadings which addresses the sufficiency of pleading. The principle gives the Court authority to interfere on grounds of equity with a final judgment obtained "obtained or entered through fraud, mistake, or accident, or where the defendant in the action, having a valid legal defense on the merits, was prevented in any manner from maintaining it by fraud, mistake, or accident, and there had been no

negligence, laches, or other fault on his part, or on the part of his agents. (*Olivera v. Grace* (1942) 19 Cal.2d 570, 575.) There is no final judgment in this matter from which Plaintiff can seek such relief.

If

Plaintiff seeks relief from the order granting summary judgment in Defendant's favor in the lead matter, the request is improperly raised in opposition to Defendant's motion for judgment on the pleadings which concerns a different pleading. Defendant points out the order was issued on April 12, 2023 by the Hon. Anne Richardson. (D's RJN Ex 2.) The Court grants Defendant's request for judicial notice of Court records.

This Court denied Plaintiff's motion to vacate that judgment in 2025, which was affirmed by the Court of Appeal. (Opinion filed 7/31/26 in BC719459.) The lead matter is finally resolved. There is no evidence that Plaintiff was deprived of her rights to be heard in the lead matter. Nor has Plaintiff persuasively argued that this Court should stay enforcement of the order granting summary judgment.

C. Res Judicata

In its primary aspect, res judicata, or

"claim preclusion" prevents relitigation of the same cause of action in a second suit between the same parties or their privities where the claim was finally litigated. (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) The second aspect of res judicata known as collateral estoppel, or

issue preclusion, prohibits the relitigation of issues decided in a prior proceeding. Issue preclusion applies "(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 825.)

Collateral estoppel applies even if the second lawsuit alleges different causes of action. (*Id.*)

Both the lead matter and this case assert claims arising from the same set of facts. The second amended complaint in the lead matter alleges that Plaintiff was subjected to a pattern of harassment because she filed a workers' compensation claim in January 10, 2017 after suffering a work-related injury. (D's RJN, Ex. 7, ¶¶ 8-11.) Thereafter,

Plaintiff alleged Defendant terminated her employment on February 1, 2017. (Id., ¶ 14.) The second amended complaint in the lead matter alleged discrimination, retaliation, and related FEHA claims arising from these facts.

In this action, the complaint alleges the same work-related injury that occurred on January 9, 2017, for which Plaintiff filed a workers' compensation claim. (Complaint, ¶ 11.) Plaintiff alleges that on February 1, 2017, she was abruptly terminated without explanation. (Id. ¶¶ 13-14.) Plaintiff alleges eleven causes of action for retaliation, discrimination, and related FEHA claims, a tort claim for wrongful termination in violation of public policy, defamation and intentional infliction of emotional distress. The FEHA claims arising from the 2017 termination were finally litigated in the first action when the trial Court granted summary judgment in Defendant's favor and entered judgment in favor of Defendant. (D's RJN Ex. 8-10.)

Plaintiff is barred from re-litigating the FEHA claims arising from her termination.

D. The new claims for defamation and intentional infliction of emotional distress

The defamation claim alleges that following Plaintiff's termination, Defendant knowingly and falsely alleged that Plaintiff was terminated for poor job performance although Plaintiff did not have any history of disciplinary action or performance deficiencies. (Complaint, ¶ 45.) Plaintiff alleges she alleged the defamation claim in the lead matter. (Complaint, ¶ 46.)

The claims for wrongful termination in violation of public policy and intentional infliction of emotional distress are also based on her February 1, 2017 termination. (Complaint, ¶ 116.) All three claims are equally barred by res judicata. Prior litigation between the same parties is a bar not only to issues which were actually raised but to causes of action which could have been litigated." (Goldberg v. Frye (1990) 217 Cal.App.3d 1258, 1264.)

IV. CONCLUSION

Based on the foregoing, Defendant's motion for judgment on the pleadings is GRANTED.